

23BBCV02069 23BBCV02069

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Case Number: 23BBCV02069 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Sanctions

Hearing Date: 8/28/26

CASE NO./NAME: 23BBCV02069/ Tutkhalyan

v. Los Angeles Metro. Transportation Authority, et al.

Moving Party: Plaintiff Karen Tutkhalyan

Responding Party: Defendant Los Angeles

Metro. Transportation Authority

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This case arises from a January 9, 2023, incident in which plaintiff Karen Tutkhalyan (Plaintiff), a passenger on a Los Angeles County Metropolitan Transportation Authority bus, alleges that the bus driver accelerated abruptly before Plaintiff had an opportunity to sit or stabilize himself, causing him to fall and suffer significant injuries. The complaint, filed September 8, 2023, alleges causes of action for negligence and strict liability against Defendant Los Angeles Metropolitan Transportation Authority (Defendant).

On July 31, 2026, the Court denied Defendant's motion seeking reconsideration of the Court's June 12, 2026, Order granting Plaintiff's motion to compel deposition.

On August 3, 2026, Plaintiff filed the instant motion seeking imposition of sanctions. On August 17, 2026, Defendant filed an opposition. On August 21, 2026, Plaintiff filed a reply.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (1) The Court's June 12, 2026, Minute Order granting Plaintiff's renewed motion to compel further deposition answers of Metro's Person Most Qualified; (2) July 31, 2026, Minute Order; (3) August 14, 2026, Minute Order; (4) August 17, 2026, Nunc Pro Tunc Order correcting the August 14, 2026, Minute Order; and (5) April 4, 2025, Minute Order. The request is granted. (Evid. Code, § 452(d).)

LEGAL STANDARD

Code of Civil Procedure section 128.7 authorizes sanctions where a party or attorney presents a paper that is not warranted by existing law, whose factual contentions lack evidentiary support, or that is presented for an improper purpose such as delay. (Code Civ. Proc., § 128.7(b).) Sanctions are proper where the filing is one that no reasonable attorney would consider

legally tenable, or that is frivolous or filed in bad faith. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 440.)

Section 128.7's safe-harbor provision requires that the motion be served at least 21 days before filing, during which the offending paper may be withdrawn. (§ 128.7, subd. (c)(1).)

DISCUSSION

Plaintiff

seeks imposition of sanctions against Defendant for filing the motion for reconsideration of the Court's June 12, 2026, Order, which Plaintiff argues was not warranted by existing law, lacked evidentiary support, and was presented for improper purposes or relitigating a decided issue and causing unnecessary delay. (Mot., p. 2.) Plaintiff seeks imposition of \$14,625 in sanctions reflecting reasonable attorney's fees and expenses incurred in opposing the reconsideration motion and bringing the instant motion. (Ibid.)

Plaintiff

argues that the reconsideration motion is sanctionable and offered no new or different facts as required by statute. (Mot., p. 5.) Further, Plaintiff argues that no reasonable attorney would consider the motion legally tenable. (Ibid.) Plaintiff argues that Defendant's own conduct contradicted the reconsideration motion because they agreed to comply with the July 12 Order requiring production of their PMQ despite later moving for the Court to reconsider that same Order. (Mot., p. 4.) Lastly, Plaintiff argues that the reconsideration motion was filed for no legitimate purpose. (Mot., p. 6.)

In

opposition, Defendant argues that the Court did not find the reconsideration motion frivolous or that it was filed for improper purpose but instead simply denied the motion. (Opp., p. 2.) Defendant argues that the factual basis of their reconsideration motion exists in the June 12, 2026, Order in which the Court acknowledged that Defendant had objected to a specific category of questions which the Court ultimately decided to compel. (Opp., p. 6.) Defendant argues that a motion may fail without becoming frivolous. (Ibid.) Defendant argues that their compliance with the June 12, 2026, Order while pursuing reconsideration is not an inconsistency that supports the contention that the reconsideration motion was filed for improper purpose. (Opp., p. 8.) Rather, Defendant argues that this shows Defendant's compliance with the obligations imposed by the Court reconsideration

was pending. (Opp., pp. 8-9.)

In

reply, Plaintiff concedes that Defendant had factual support for a portion of their reconsideration motion. (Reply, p. 3.) Plaintiff argues that Defendant creates new arguments as to why the reconsideration motion was brought and argues that Defendant does not effectively argue against the frivolousness of the motion. (Reply, p. 4.) Plaintiff maintains that they do not seek sanctions because Defendant lost the motion, they seek sanctions because of Defendant's contradictory conduct. (Reply, p. 5.) Plaintiff argues that "[t]he [reconsideration] motion was set for hearing on July 31, a month after the deposition it purported to restrict" and Defendant did not seek a stay, thus Defendant could accomplish nothing through the reconsideration motion except relitigation, delay, and cost. (Reply, p. 7.)

Here, the Court does not find that the filing of the reconsideration motion justifies such sanctions. The Court in *Marriage of Flaherty* found that filings should "be held to be frivolous only when it is prosecuted for an improper motive -- to harass the respondent or delay the effect of an adverse judgment -- or when it indisputably has no merit -- when any reasonable attorney would agree that the [filing] is totally and completely without merit." (*In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650.) The court also acknowledged that counsel and their clients have the right to present arguments and issues even if they are extremely unlikeable positions. (*Ibid.*) Similarly, in *Guillemin v. Stein*, the court found that although Plaintiff's contention "lacked persuasive force, his motion was not frivolous, and he was entitled to zealously argue the point." (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.)

Despite any criticism Plaintiff may have of Defendant's litigation approach or strategy, the Court does not find that the filing of the motion for reconsideration of the Court's June 12, 2026, Order was frivolous or founded in bad faith and improper purpose.

Accordingly, the motion for sanctions is DENIED.

CONCLUSION

AND ORDER

Plaintiff Karen Tutkhalyan's motion for

sanctions is DENIED.

MOVING PARTY is to give notice.